

Archana Kesarwani v. Purvanchal Vidhut Vitrana Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 6 July 2023 · 2023:AHC:133745-DB · WRIT - C No. - 21259 of 2023 · **Writ disposed on consent; representation to be decided, merits open.**

HEADNOTE

Writ disposed on consent without examination of merits. The consumer may, within one week, move a fresh representation before the second respondent on her unprocessed clause 6.5(b)(ii) application (actual consumption after 21.05.2021; earlier period on average under clauses 5.6(c)(ii) and 5.7(d)), to be considered and decided preferably within two weeks. The licensee stated that any surcharge waiver to which she is entitled would be processed as per law.

FACTUAL SUMMARY

Archana Kesarwani complained that the second respondent, an officer of Purvanchal Vidyut Vitran Nigam Ltd., had not processed her application under clause 6.5(b)(ii) of the U.P. Electricity Supply Code, 2005. She asked that consumption after 21 May 2021 be taken from the meter, and that the period before that date be billed on the average consumption pattern under clauses 5.6(c)(ii) and 5.7(d). The grievance concerned waiver of surcharge said to follow from that assessment. She filed a writ petition before the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)(ii)

Unprocessed surcharge-waiver application left for consideration

HOLDING

On the licensee stating that any waiver of surcharge to which the petitioner is entitled under the provisions she invoked would be processed as per law, the writ was disposed of on consent. The petitioner may, within one week, move a fresh representation before the second respondent (described as the Execution Engineer) that her application under clause 6.5(b)(ii) was not processed — actual meter consumption after 21.05.2021, and for the earlier period the average pattern under clauses 5.6(c)(ii) and 5.7(d). That representation is to be considered and decided expeditiously, preferably within two weeks. The Court did not examine the merits.

¶ 3-4

PRINCIPLE TAGS

disputed-assessment-relegated-to-6.5(b)(ii)

The dispute over surcharge waiver, to be worked out under clause 6.5(b)(ii) for the period after 21.05.2021 and under clauses 5.6(c)(ii) and 5.7(d) for the earlier period, was not decided. On consent, and on the licensee's statement that any entitlement would be processed as per law, the petitioner was left to a fresh representation before the second respondent, to be considered and decided preferably within two weeks.

¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO WAIVER OF SURCHARGE BY TAKING ACTUAL METER CONSUMPTION AFTER 21.05.2021 UNDER CLAUSE 6.5(B)(II) AND THE EARLIER PERIOD ON THE AVERAGE PATTERN UNDER CLAUSES 5.6(C)(II) AND 5.7(D).

The Court recorded that it had not adverted to the merits. ¶ 4

